

Sexual Harassment at Workplace (Prevention) Act, 2015

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 7

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Certification and Publication Date

2071.8.5

Amending Acts

1. Act to Amend Some Nepal Acts, 2072 2072.11.13
2. Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075 2075.11.19

Act No. 7 of the Year 2071

An Act Made to Provide for the Prevention of Sexual Harassment at Workplace

Preamble: Whereas, it is desirable to make necessary provisions for the prevention of sexual harassment at workplace while ensuring the right of every person to work in a safe, clean and dignified environment,

The Constituent Assembly, in the capacity of the Legislature-Parliament, has enacted this Act in accordance with Article 83 of the Interim Constitution of Nepal, 2063. 1. Short Title and Commencement: (1) This Act may be cited as the "Sexual Harassment at Workplace (Prevention) Act, 2071".

(2) This Act shall commence on the ninety-first day from the date of its certification. 2. Definitions: Unless the subject or context otherwise requires, in this Act:

(a) "Grievance Hearing Officer" means the officer referred to in Section 14.

(b) "Employee" means an employee or worker working at a workplace.

(c) "Workplace" means the following bodies, institutions or firms, and the term shall also include the place used in the course of performance of work of such body, institution or firm:

(1) Government body,

(2) A corporate body wholly or partly owned by the Government of Nepal,

(3) A body or corporate body established under the prevailing law,

(4) A firm, body or corporate body which has obtained permission or has been registered under the prevailing law with the objective of carrying out any business, transaction or providing services.

(d) "Sexual Harassment" means any act referred to in Section 4.

(e) "Manager" means a person authorised to make final decisions regarding the administrative or commercial work and proceedings of a workplace, or an officer exercising delegated authority for that purpose, and the term shall also include the chief of any branch or unit of such workplace, if any.

(f) "Service Recipient" means a person present at a workplace with the objective of receiving any kind of service, and the term shall also include a person accompanying him or her. 3. Prohibition on Committing or Causing Sexual Harassment: No person shall commit or cause sexual harassment at a workplace. 4.

Acts Deemed as Sexual Harassment: (1) If any person, by misusing his or her position, power or authority, by exerting any kind of pressure, influence or temptation, or by discouraging, commits or causes to commit any of the following acts at a workplace against any employee or service recipient, it shall be deemed that sexual

harassment has been committed: (a) Touching or attempting to touch any part of the body with sexual intent, (b) Using or displaying words, pictures, newspapers, audio, video, other information technology, means, objects or materials related to obscene or sexual activities, (c) Displaying or expressing obscene or sexual intent in writing, speech or by gestures, (d) Proposing sexual activities, (e) Teasing or causing annoyance with sexual intent. (2) Notwithstanding anything written in clauses (a), (b) or (c) of sub-section (1), any act done in the course of education, information, research, treatment or rescue shall not be deemed to be sexual harassment. 5. Duties of Manager: (1) The Manager shall perform the following acts to prevent or prohibit sexual harassment at a workplace: (a) Make necessary provisions relating to prevention of sexual harassment in the law concerning the service and conditions of employees, (b) Sensitize employees and service recipients to prevent sexual harassment, (c) Adopt necessary corrective measures to prevent recurrence of sexual harassment, (d) Provide counselling services to the victim as required, (e) Maintain a complaint box at the workplace. (2) The Manager shall clearly inform the victim about the period for filing a complaint against sexual harassment, the procedure, and the Grievance Hearing Officer. 6.

Hearing of Complaints: (1) If any person commits any kind of sexual harassment against any employee or service recipient at a workplace, the aggrieved employee, service recipient or any person on his or her behalf may lodge a complaint in writing or orally with the Manager against such person within fifteen days. (2) If any complaint is lodged under sub-section (1), the Manager shall conduct an immediate inquiry into the matter. (3) If, upon inquiry under sub-section (2), it appears that the accused person has committed sexual harassment against the complaining employee or service recipient, the Manager may order the performance of any or all of the following acts: (a) Facilitate reconciliation between the victim and the accused person if both parties agree, (b) Cause the accused person to apologise to the victim, (c) Warn the accused person not to repeat such act, (d) Cause the accused person to pay reasonable compensation to the victim, (e) Initiate departmental action against the accused person in accordance with the law on service conditions. (4) The Manager shall conclude the complaint made under sub-section (1) within fifteen days from the date of lodging the complaint. 7. Filing of Grievance: (1) Notwithstanding anything written in Section 6, if any person commits any kind of sexual harassment against any employee or service recipient at a workplace, the aggrieved employee, service recipient or any person on his or her behalf may file a grievance with the Grievance Hearing Officer against such person within ninety days from the date of the occurrence of the sexual harassment, along with evidence. (2) If a complaint made under Section 6 is not concluded within the specified period, the aggrieved employee, service recipient or any person on his or her behalf, or the accused person, may file a grievance with the Grievance Hearing Officer within seventy days from the date of expiry of such period, and if any party is dissatisfied with the decision made by the Manager under that Section, within seventy days from the date of such decision. (3) If any Manager fails to comply with the duties or other provisions under this Act, or fails to comply with the direction given by the Grievance Hearing Officer or the body conducting inspection or monitoring under Section 9 or 11, the concerned person may file a grievance with the Grievance Hearing Officer. 8.

Possibility of Settlement: (1) If both the victim of sexual harassment and the accused person so desire, they may submit a joint application to the Grievance Hearing Officer for settlement. (2) If a joint application for settlement is submitted under sub-section (1), the Grievance Hearing Officer shall, after necessary consultation with the parties, effect a settlement. (3) No fee shall be charged for a settlement under sub-section (2). 9. Protection of Complainant: (1) The Manager shall not remove an employee from service, initiate any other departmental action, or take any kind of action adversely affecting his or her career development, including transfer or promotion, solely on the ground that he or she has made a grievance under this Act. (2) If the Manager takes any kind of action against any employee contrary to sub-section (1),

such employee may submit a petition to the Grievance Hearing Officer stating the particulars thereof. (3) Upon inquiring into a petition submitted under sub-section (2), if the Grievance Hearing Officer finds the content of the petition reasonable, the Officer shall issue an order to the concerned Manager to annul or correct such decision. (4) If an order is issued by the Grievance Hearing Officer under sub-section (3), the concerned Manager shall execute such order within fifteen days from the date the appeal period has expired or, if an appeal has been filed, from the date of the decision on such appeal. (5) If an employee feels any kind of insecurity at the workplace due to having made a grievance under this Act, such employee may submit a petition to the Manager for security. (6) If any petition is received under sub-section (5), the Manager shall make appropriate arrangements for the security of such employee at the workplace. (7) If security arrangements are not made for the employee petitioning under sub-section (5) by the Manager, or if the Manager himself or herself is the accused party, such employee may request security from the local security agency, and upon such request for security, the security agency shall also make arrangements for his or her security. (8) If it is not deemed appropriate to retain an employee who has been proven to have committed sexual harassment in that office, the Manager shall transfer such employee to another place if he or she has the authority to do so, and if the transfer is to be made by another officer or body, the Manager shall send a letter to such officer or body for transfer. 10.

Inspection and Monitoring: The National Women Commission or the body at a level superior to that of the Manager may inspect or monitor the workplace to ascertain whether the Manager has complied with the duties and other provisions set forth in this Act and the rules and code of conduct framed under this Act. 11. Submission of Report: (1) A person deputed for inspection and monitoring under Section 10 shall, after the completion of the inspection and monitoring work, submit a report to the concerned body stating the following matters: (a) The duties or other provisions fulfilled or not fulfilled by the concerned Manager, (b) Matters on which the concerned Manager was called upon to fulfill duties or other provisions, and (c) Other necessary matters. (2) If, upon examining the report received under sub-section (1), it appears that any Manager has not complied with the duties or other provisions set forth in this Act and the rules and code of conduct framed under this Act, the body conducting or having the inspection or monitoring conducted shall direct the concerned Manager to comply with such duties or provisions. (3) It shall be the duty of the concerned Manager to comply with the direction given under sub-section (2). (4) If it appears that a policy decision needs to be made by any body regarding the matters mentioned in the report received under sub-section (1), the body conducting or having the inspection or monitoring conducted shall send a letter to the concerned body for the necessary policy decision. Provided that if the matter is one on which such body itself must make the policy decision, it shall initiate the necessary action for the decision. 12.

Penalties: (1) If any person is found to have committed sexual harassment against any employee or service recipient, such person shall be liable to imprisonment for up to six months or a fine of up to fifty thousand rupees, or both, depending on the nature of the offence. (2) If any Manager is found to have failed to comply with the duties or other provisions under this Act, such Manager shall be liable to a fine of up to twenty-five thousand rupees. (3) If any Manager fails to comply with the direction given by the Grievance Hearing Officer or the body conducting or having the inspection or monitoring conducted under Section 9 or 11, such Manager shall be liable to a fine of up to twenty-five thousand rupees. (4) If a person who has been punished under this Section repeats the act for which such punishment was imposed, such person shall be liable to double the punishment for each subsequent occasion. (5) If any person is found to have knowingly submitted a false grievance under this Act, such person shall be liable to a fine of up to ten thousand rupees. (6) If any employee or person is punished under this Section, the Grievance Hearing Officer shall inform the concerned body thereof. 13. Compensation and Recovery of Amount: Upon inquiring into a grievance filed under this

Act, if the accused person is found to have committed sexual harassment, the Grievance Hearing Officer shall, in addition to punishing such person under Section 12, order such person to pay the following compensation or amounts to the victim: (a) Reasonable compensation for any physical or mental injury sustained, (b) Actual expenses incurred in filing the grievance or defending the grievance. 14. Grievance Hearing Officer: (1) The authority for the initial proceedings and adjudication of grievances under this Act shall vest in the Chief District Officer of the concerned district. (2) Notwithstanding anything written in sub-section (1), the authority for proceedings and adjudication of a grievance against the Chief District Officer shall vest in Amended by the Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075.the Chief Secretary of the concerned Province. 15. Procedure for Hearing Grievances: (1) The Grievance Hearing Officer shall, in conducting proceedings and adjudication of grievances filed under Section 7, follow the procedure set forth in the Summary Procedure Act, 2028. (2) If the victim so requests in writing, the Grievance Hearing Officer shall conduct the hearing of the grievance in camera. 16.

Appeal: A person dissatisfied with the decision made by the Grievance Hearing Officer under this Act may file an appeal with the concerned Amended by the Act to Amend Some Nepal Acts, 2072.District Court within thirty-five days from the date of such decision. 17. Enforcement of Decision or Settlement: (1) The duty to enforce a decision or settlement made under this Act shall lie with the concerned Manager. (2) If the Manager fails to enforce the decision or settlement under sub-section (1), the concerned complainant may submit a petition to the Grievance Hearing Officer stating the particulars thereof. (3) If a petition is submitted under sub-section (2), the Grievance Hearing Officer shall cause the enforcement of such decision or settlement in accordance with the prevailing law. (4) Notwithstanding anything written in sub-section (1), if the accused person is the Manager, the Grievance Hearing Officer shall himself or herself enforce the decision or settlement within sixty days. 18. Inclusion in Training Curriculum: Every training-providing body shall include the subject of sexual harassment and its prevention in the training curriculum. 19. No Bar to Prosecution under Prevailing Law: Nothing in this Act shall be deemed to bar the filing of cases and taking action under other prevailing laws in respect of any act or omission that is also punishable under such laws. 20. Matters to be Governed by Prevailing Law: Matters provided for in this Act shall be governed by this Act, and other matters shall be governed by the prevailing law. 21. Framing of Code of Conduct: (1) The Government of Nepal shall frame and implement a necessary code of conduct relating to the prevention of sexual harassment. (2) Subject to the code of conduct framed under sub-section (1), each Manager shall frame and implement a separate code of conduct according to the nature of the workplace. (3) It shall be the duty of all concerned to comply with the code of conduct framed under sub-sections (1) and (2). 22. Power to Frame Rules: The Government of Nepal may frame necessary rules for the implementation of this Act.